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Towards a Typology of Humanitarian Access Denial

MELISSA T LABONTE & ANNE C EDGERTON

ABSTRACT *Classified by the UN as one of five core challenges to civilian protection, humanitarian access denial is an increasingly urgent dilemma facing humanitarian actors. Conventional thinking about humanitarian access denial focuses on its outcomes rather than factors that shape its occurrence. The norms associated with humanitarian access and civilian protection are highly institutionalised at the intergovernmental level, yet states demonstrate considerable variation in their compliance with them at the domestic level. Utilising an interpretivist approach, we analyse how actions taken by states to deny humanitarian access in Ethiopia, Sri Lanka and Darfur/Sudan are given meaning and how they come to be understood by state actors themselves as a conduit to pursue other goals. We propose a descriptive typology of humanitarian access denial, and discuss the implications this phenomenon carries for civilian protection by humanitarian actors.*

Humanitarian access denial is an increasingly urgent phenomenon encountered by humanitarian actors in complex emergencies and has featured in a number of recent scholarly and practitioner debates.¹ Indeed, the dilemmas associated with access denial have led the UN to categorise it as one of five core challenges to civilian protection.² Drawing on its well developed knowledge of how access denial occurs, the Office for the Coordination of Humanitarian Affairs (OCHA) has distinguished three principal forms of denial: bureaucratic constraints; intensity of hostilities (denoting a failure to uphold protection responsibilities); and violence against humanitarian personnel and theft of assets.³ The international community of states has also recognised that the effects of failing to ensure humanitarian access carry important implications for bedrock principles of international human rights, humanitarian and refugee law, and can exacerbate cultures of impunity.

Despite its prevalence, and knowledge about how it occurs, our understanding of *why* states constrain humanitarian space and deny humanitarian access to

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populations in need of life-saving assistance and protection is far less developed. Many simply attribute these instances to power politics. Yet states demonstrate considerable variation in how they obstruct humanitarian access, which suggests that national authorities hold differing perceptions of the norms represented by humanitarian access and, relatedly, civilian protection.⁴

We extend this line of inquiry by using an interpretivist approach to analyse the strategic goals states pursue through humanitarian access denial in three complex humanitarian crises in Ethiopia, Sri Lanka and Darfur/Sudan. Rather than assuming state behaviour to be *ad hoc* or episodic, we argue that humanitarian access denial can constitute a valuable policy tool for national authorities and reflects prevailing perceptions of the norms associated with humanitarian access and civilian protection.⁵ Using OCHA's primary access denial mechanisms as a starting point for our analysis, we propose that states combine different variations of these mechanisms to advance different foreign and domestic policy goals. In each case the normative perceptions associated with humanitarian access and civilian protection, and the degree to which they align with a state's goals, help shape the contours of policy response. We then propose a descriptive typology of humanitarian access denial, both to capture variation found across the cases and as a device to encourage new thinking and dialogue. These variations are not exhaustive and, over the course of a particular conflict, national authorities may engage in more than one type of access denial strategy to further the policy goals they seek to achieve.

Our research is based on desk analysis of internal and public documents related to humanitarian access denial and civilian protection. It is complemented by evidence drawn from and interviews carried out with humanitarian actors in the field, including the second author's own former institution.⁶ In the following sections we discuss how norms and practices associated with humanitarian access and civilian protection have become institutionalised within intergovernmental-level cognitive and political structures. We explain how an interpretivist approach can be used to examine state behaviour concerning humanitarian access, and explore the implications that different strategies of access denial have had on civilian protection in the cases of Ethiopia, Sri Lanka and Darfur/Sudan. We conclude by presenting a descriptive typology of humanitarian access denial and discuss the limits of working in settings where subjective perceptions of the humanitarian environment and its norms are incongruent with national ideologies and goals.

Humanitarian access and civilian protection

The norms associated with humanitarianism, including access and protection, have deep roots. National authorities who perpetuate conditions of undue hardship upon their civilian populations by withholding or failing to provide 'supplies essential for [their] survival' must permit assistance that is humanitarian and impartial in character and conducted without any adverse distinction. In addition, civilians shall be protected from acts that transgress norms associated with human dignity, including violations of the principles of distinction and non-combatant immunity.⁷ Civilian protection is generally described as

including structures, policies and activities designed to achieve full respect for the human rights of the individual in accordance with the letter and spirit of international human rights and humanitarian law, and refugee law.⁸

Since the late 1990s humanitarian access and civilian protection have formed a cornerstone of the UN's protection of civilians in armed conflict (POC) agenda. The Secretary-General disseminates annual reports on civilian protection highlighting pressing issues and providing recommendations to UN system actors.⁹ The UN General Assembly routinely calls upon national authorities and conflict parties to conform to relevant international and national legal obligations, and to ensure safe and unhindered access to vulnerable populations.¹⁰ The Security Council has adopted thematic resolutions on civilian protection and humanitarian access, as well as response mechanisms for sudden onset and protracted crises.¹¹ It has issued numerous Presidential Statements and resolutions addressing the protection of civilians, journalists, and UN staff and humanitarian workers in armed conflict.¹² Since 2000 civilian protection norms have been explicitly codified in the mandates of all multilateral peacekeeping operations and, in 2009, the Security Council Expert Group on the Protection of Civilians was first convened.¹³

While these are notable developments, there are few studies that view humanitarian access denial and civilian protection from the perspective of what the national authorities, the 'deniers' of access, derive from taking such measures. This implies that state actions have largely been considered *ad hoc* in nature. Where states engage in humanitarian access denial, the international media, policy makers, human rights groups and others typically attribute such decisions to power politics, but seldom examine them seriously from an interpretive perspective focusing on normative subjectivity. Our understandings of the phenomenon of humanitarian access denial have thus been informed largely by focusing on specific mechanisms or outcomes rather than discerning why national authorities do or do not engage in this behaviour. However, given that the international humanitarian community is experiencing more and more episodes of access denial and erosion of humanitarian space—both of which deeply affect civilian protection—the question of why states deny humanitarian access is one that deserves closer analytical treatment.¹⁴

An interpretivist approach

UN system actors consider humanitarian access a fundamental yet increasingly threatened element of the POC agenda. Indeed, enhancing humanitarian access is perennially identified by OCHA and the Secretary-General as a core challenge to effective civilian protection. By definition both slow- and rapid-onset disasters can create access dilemmas. These occur either as unavoidable spill-over effects of exogenous shocks (eg natural disasters) or as a result of man-made actions (eg complex humanitarian emergencies).¹⁵ Our analysis concerns the constriction of humanitarian space that is systematic and planned by national authorities—an outcome that ostensibly transgresses norms permitting safe and unhindered humanitarian access to civilian populations in need and which violates human dignity, distinction and non-combatant immunity. National

authorities and non-state actors often place limits on humanitarian access and/or withdraw their consent regarding access. This can occur in natural disaster, armed conflict and/or mass atrocity settings.¹⁶

One approach to understanding variation in humanitarian access denial is to examine broader, relative patterns involving normative perceptions concerning humanitarian access and civilian protection, and the degree to which they align with a state's foreign or domestic policy goals. Realists have long argued that states act strategically (but not necessarily rationally) across most issues and eras. Especially in matters of national security states seldom deviate from this pattern unless misperception, miscalculation or some other factors are involved.¹⁷ In a humanitarian context, however, it cannot be assumed that states will (or can) always act strategically. The elements constituting a nation's strategic interest may change over time to include humanitarian and/or other related normative considerations. How, then, would norms associated with humanitarian access and civilian protection 'fit' with other competing policy priorities, particularly in environments characterised by *Realpolitik*?

According to an interpretivist approach, ontological assumptions that some objective, 'real' world exists are flawed. Similar to reflectivism, interpretivism holds that actor behaviour can only be understood as being influenced *in part* by one's environment, but also by one's subjective perception of that environment.¹⁸ Thus, knowledge and social truth are always located 'within an institutional and socio-culturally determined community'.¹⁹ As a result, we need to unpack the relevant meanings that the deep structures and discourse of social phenomena, such as humanitarian access and civilian protection, hold for actors themselves, in order to identify how actions taken by key actors are given meaning and how they come to be understood by these same actors themselves.²⁰ Through thick description of three cases below, we argue that norms related to humanitarian access and civilian protection are more likely to become salient to policy makers when they are embedded within existing cognitive and political structures.²¹ These norms may be defined through positivism, but they are not directly observable or measurable—therefore they are not purely objective.²² In fact, the objective merits of a particular norm are less important than a norm's ability to align with existing ideas and ideologies and/or the perceived meaning norms hold for policy makers pursuing specific policy goals. Where norms do not enjoy intersubjective meaning among elites, they are less likely to influence policy outcomes.²³ Political behaviour that otherwise would be written off by analysts as simply immoral or unethical may come to be more appropriately understood through subjective perceptions and conditioning.

A mature set of cognitive and political structures has evolved at the intergovernmental level, and to some degree at the regional level,²⁴ around norms closely linked to humanitarian access and civilian protection. But this degree of institutionalisation has not been matched at the national level. Likewise norms associated with access and protection are neither universally embraced nor interpreted similarly by different national authorities. By using an interpretivist approach, we point up the particular contexts within which different outcomes concerning humanitarian access and civilian protection are observed. This situated or contextual knowledge approach has been used in the study of

humanitarian politics as well as international law, for example, and is ideal when building knowledge from the ‘inside-out’.²⁵

Humanitarian access denial affects all actors engaged in civilian protection activities and programming and creates challenges for the implementation of the POC agenda. And, for mandated protection agencies such as the International Committee of the Red Cross (ICRC) and the UN High Commissioner for Refugees (UNHCR), it compromises their ability to deliver effective civilian protection, monitor and assess vulnerable populations, and promote their cause with government and international authorities. For several years OCHA has systematically collected and analysed relevant data on the mechanisms used to impede humanitarian access. Based on thousands of reports provided by humanitarian practitioners, the most prevalent obstructions having the most severe impact on humanitarian access fall into three categories: bureaucratic constraints; intensity of hostilities; and violence against humanitarian personnel and theft of assets. Each is described briefly here.

First, states can impede humanitarian access by creating and enforcing burdensome bureaucratic constraints on humanitarian actors. Such actions include restricting the entry of humanitarian organisations and staff into a country of operations; restricting or placing limits on access to specific areas or the amount and type of permitted relief items (as well as how they must be transported); applying restrictions inconsistently, imposing *ad hoc* and evolving demands at the local level that may contradict national policies; and curtailing the movement of humanitarian staff and goods (eg checkpoints, roadblocks, extortive practices). Second, humanitarian access can be constrained when parties to a conflict fail to honour protection responsibilities to civilians and non-combatants under international humanitarian law by intensifying hostilities, or by failing to establish arrangements ensuring effective delivery of humanitarian assistance. In settings where indiscriminate violence forces humanitarian workers to leave areas of operation or prevents civilians from reaching locations where humanitarian actors are operating, assistance and protection become impossible to carry out. Third, state (and non-state) actors also affect humanitarian access by threatening or perpetrating direct acts of violence against humanitarian staff and their operations, and/or by disabling, destroying or stealing humanitarian assets.

In the following sections we analyse three complex humanitarian emergencies to establish multiple, situated understandings of the reasons why states may engage in humanitarian access denial. In each case the degree to which humanitarian access and civilian protection norms are embedded within cognitive and political structures at the national level provides insights into why states consider humanitarian access and civilian protection as being either in alignment or in contest with national policy goals.

Ethiopia

Since the great Sahelian drought of the 1970s Ethiopia’s media-driven image as a nation beset by chronic famine is a persistent source of deep national shame and frustration. Relatedly its quixotic political reforms have had significant

implications for humanitarian access and civilian protection.²⁶ Government policy concerning the humanitarian impact of disaster has paralleled national perceptions of the value of the humanitarian industry's presence in Ethiopia. Close observers of Ethiopia's humanitarian politics, however, emphasise that, while the government's capacity to manage vulnerability has been marked by volatility, Ethiopia has consistently perceived its 40-plus-year interaction with the international humanitarian community as being highly paternalistic.²⁷ The relationship between humanitarians and national authorities suffered greatly as a result, and the state has utilised bureaucratic constraints to induce high levels of control over international nongovernmental organisations (INGOS) and national NGOs (NNGOS) which engage in activities the government perceives as injurious to the national image, such as human rights promotion and civilian protection, including women's rights.

Humanitarian access denial also correlates inversely with the government's exposure to complex emergencies, suggesting that, at the national level, the norms underpinning access and protection are not deeply internalised. In years when disaster risks were low national authorities adopted a relaxed approach toward humanitarian actors engaging in civilian protection activities, despite existing legislation restricting certain activities, which simply went unenforced. At other times compliance assured rewards. For example, the National Policy on Disaster Prevention and Management 1995 Directives established highly cumbersome and complex reporting requirements for INGOs and set stringent time limits on the number of years an INGO could work in a particular area. Where INGOs complied fully with the stringent requirements, they were offered special treatment by the government.²⁸

Moreover, during drought-free years, the government focused on dismantling the national capacity for disaster response as a symbol of resurgent national image. These decisions complicated humanitarian protection activities, as the state would suddenly go missing from time to time in fulfilling its duties to the population. New policies and restrictions would then be hastily (re)legislated in years when drought and famine returned to the country. With each cycle the state's capacity for response steadily eroded, and thus government authorities had to rely more and more heavily on external humanitarian actors and assistance. This, in turn, sharpened resentment within the government of INGOs and their NNGO partners. The cycle culminated in the famine crisis of 2003, when the government issued its largest humanitarian relief appeal in history. Following the crisis new legislation focused on reining in all humanitarian actors whose activities were suspect to policy elites. For example, the government began implementing surprise financial audits and suspending the bank accounts of organisations whose work involved specific types of protection or advocacy.

Despite INGO criticism that these actions violated well established norms of humanitarian access and civilian protection, the government repeatedly expresses the view that humanitarian organisations operating in Ethiopia are service providers whose activities should strengthen the government and its national image. In no way should they operate as advocates or protectors of rights. Moreover, while national authorities publicly acknowledge the need for

humanitarian assistance, they also consider this relationship to be fraught with risks.²⁹

Two recent developments bear watching as portents of how Addis Ababa reconciles its policy goals with perceptions of humanitarian access and civilian protection norms. First, the sole remaining national agency responsible for overseeing internal displacement, the Disaster Prevention and Preparedness Agency (DPPA), was disbanded in 2008.³⁰ This left humanitarian actors scrambling regarding where to turn for humanitarian needs assessments, which are vital to implement protection response activities.³¹ The DPPA's mandate was transferred to the Ministry of Agriculture and Rural Development, whose staff was reduced by more than half.³² No dedicated government agency or focal point has emerged to deal with conflict-induced displacement or its civilian protection dimensions. Second, the government passed legislation in 2009 which, if enforced, will severely constrain humanitarian access and civilian protection. The *Proclamation for the Registration and Regulation of Charities and Societies* sanctioned the Charities and Societies Agency (CSA), which manages and oversees the operations of charities, including INGOs and NNGOS. The law outlined detailed financial reporting and disclosure regulations, declared a 30/70 administrative versus programme cost requirement to operate a charity in Ethiopia, and stipulated strict requirements for international staff residing in Ethiopia. As the nation previously had neither a single government entity nor an overarching framework for humanitarian actors, in principle it was welcomed by some actors on the ground.³³

However, the Proclamation remains highly controversial. At issue are the powers the law confers on the CSA, including provisions regarding the criminalisation of INGOs and NNGOS for activities, including civilian protection, which at any time the government may deem unlawful. Restrictive regulations regarding what qualifies as a legal activity under the new framework may also be problematic for humanitarian access and civilian protection. For example, the CSA enjoys extensive discretionary authority to deny legal recognition and/or disband NGOS, regulate their management and staffing, and even alter their organisational missions.³⁴ It is empowered to monitor the activities of every NGO covered under the law. To qualify as a national organisation, NNGOS cannot receive more than 10% of their income from outside Ethiopia. If enacted, these provisions will severely constrain humanitarian independence and autonomy, as well as civilian protection programming. The new law also expressly bars INGOs which receive more than 10% of their funding from foreign sources from programming related to human rights; rights and protection of women, children and the disabled; and conflict resolution. As has been the case in the past, some humanitarian staff in Ethiopia believe that enforcement of the Proclamation is likely to be selective.³⁵ However, humanitarian actors found to be operating outside the law face criminal sanction, including suspension and expulsion, which not only constricts humanitarian space but, more importantly, denigrates internationally recognised norms related to humanitarian access and civilian protection.

Sri Lanka

The Colombo government's track record of constraining humanitarian access and impeding civilian protection is as long as the 30-year war against the Liberation Tigers of Tamil Eelam (LTTE).³⁶ For purposes of analytical concision we focus here on the final phase of the conflict. From September 2008 until May 2009 national authorities conducted a strategy of access denial that deliberately put civilian protection at significant risk while it pursued a national goal of defeating terrorism. It prohibited nearly all UN and international humanitarian actors from operating in the Vanni, where it had intensified its war against the LTTE and the civilian population.³⁷ Government officials also questioned the civilian status of humanitarian staff working in the Vanni, refusing, for example, to recognise UN national aid workers trapped there as civilian personnel and demanding instead that the UN classify them as being 'on leave'.³⁸ Despite the fact that humanitarian staff routinely operate in active conflict settings, policy elites in Colombo justified their policy of restricting humanitarian access by claiming they could not guarantee aid worker safety. However, two agencies, the ICRC and Caritas, were permitted to continue working in the region, which suggests that strategic interests may have motivated the government's decision.³⁹

During the closing months of the conflict national authorities further impeded humanitarian access by indiscriminately shelling the civilian population, which had crowded into smaller and smaller 'No-Fire Zones'. The government permitted weekly UN-led convoys into the Vanni to deliver humanitarian relief, but would not authorise regular access. The Ministry of Defence tightly controlled which actors transported aid and restricted many items, such as high-nutrition food biscuits for children and tarpaulins for shelter, claiming they could be used by the LTTE.⁴⁰ When (mostly national) humanitarian actors vacated the areas where fighting ensued, the military denied them re-entry.⁴¹ It did so with the implicit endorsement of the international community of states, which stood by as civilian casualties mounted. Indeed, President Rajapaksa proclaimed in February 2009 that 'many who were once critical of our operations...are now citing Sri Lanka...as an example on how terrorism should be defeated'.⁴² Thus, the internationally recognised norms of humanitarian access and civilian protection in this case were subjectively constrained by the structural demands of national security to counter a perceived existential threat.

Following the government's victory over the LTTE, and despite mounting calls for full access to some 300 000 internally displaced persons (IDPs), humanitarian access denial continued primarily through bureaucratic constraints and the government's wholesale failure to ensure protection.⁴³ The LTTE's defeat marked the beginning of a new phase of security consolidation whereby humanitarian access denial to vulnerable groups was both necessary and desirable to avoid international censure of the government for breaching its international legal obligations to civilians and ex-combatants. For example, officials continued to utilise the Prevention of Terrorism Act and Emergency Regulations to maintain tight control over IDPs and restrict humanitarian activities, further denigrating norms of unimpeded access, human dignity, distinction and non-combatant immunity.

National authorities also implemented new, highly draconian administrative policies to restrict humanitarian operations between May and December 2009. This period paralleled government efforts to weed out suspected LTTE fighters and supporters from the general displaced population, and to secure and clear former LTTE-held territory in the north and east. For example, it established IDP camps in Vavuniya, but conditioned humanitarian access to camp populations and severely restricted INGO and NGO movements. Any organisation seeking to work in Vavuniya was required to obtain clearance from the Ministry of Defence, but clearance was rarely given. This resulted in near total access denial. The first INGO (not already working in the north) to be granted access received it only for local staff, fully three weeks after the war ended. Its access did not include the organisation's vehicle, which was barred from remaining overnight in Vavuniya for another month.⁴⁴ Vehicles owned by some 14 INGOs operating in the military-run IDP camps were prohibited by the government from entering the camps.⁴⁵ INGOs were also prohibited from bringing cell phones into the camps which, given their physical expanse, effectively obstructed civilian protection and assistance activities. It was nearly impossible to traverse the camps by foot, much less distribute food and medicine or offer any real type of protection through presence.⁴⁶ The government also slowed visa renewals and requests for new residency visas, making expatriates 'cool their heels' in Colombo for months while awaiting permission to travel to the north.⁴⁷

Restricting physical access was coupled with other measures designed to deter humanitarian actors from reporting back to the outside world what they witnessed in the camps as the government consolidated security. For example, the military strictly curtailed INGO monitoring and reporting on camp conditions, despite reports of enforced disappearances, widespread sexual abuse and gender-based violence. The Ministry of Resettlement and Disaster Relief Services required humanitarian actors seeking to operate in the north to sign a memorandum of understanding containing a confidentiality clause that prohibited them from making public comments without government approval. Other government-issued directives, which were enforced by the military, prohibited INGOs from speaking to IDPs.⁴⁸

These actions correlated with the government's publicly stated goals of consolidating security both in the camps and in former LTTE-held territory. These goals were, in turn, predicated on perceptions that upholding norms associated with civilian protection would allow the LTTE to regroup, thus creating security risks that were unacceptable to the state. A number of IDP camp residents suspected of being former LTTE combatants (including children) were forcibly removed by the military and transferred to undisclosed locations or resettlement centres, violating norms of civilian protection.⁴⁹ Even government rules concerning food preparation and distribution within the camps (communal kitchens that did not meet minimum humanitarian standards) suggested that the military feared humanitarian assistance would be used for gain by LTTE sympathisers or former combatants still among the general population.⁵⁰ The government's security goal was to reconstruct a *new* north, 'one that it controls very closely and that serves its political and security purposes'.⁵¹ Indeed, Colombo publicly endorsed 'the denial of access to NGOs' as a 'security matter'.⁵²

In spite of international pressure to restore humanitarian access, and high-level visits to Sri Lanka by UN officials including former OCHA head, John Holmes, and UN Secretary-General, Ban Ki-moon, national restrictions on humanitarian access remained unchanged until late 2009. It was not until December, when former LTTE northern strongholds were cleared, suspected insurgents were separated from IDPs, and President Rajapaksa consolidated political and military power that the internment camps were officially closed and humanitarian access restrictions were eased.⁵³ However, the international humanitarian community considered this an empty gesture. The majority of IDPs were dispersed, making protection efforts impossible to implement. Similar state behaviour continued into early 2010, as national authorities prohibited independent resettlement monitoring of some 100 000 Sri Lankans.⁵⁴

The case of Sri Lanka raises important considerations for humanitarian actors. First, the near total absence of effective engagement on the issue of humanitarian access and protection left humanitarian actors completely on their own in dealing with national authorities. The Colombo government held highly negative perceptions of civilian protection norms, as it perceived them as giving legitimacy to the LTTE and succour to civilians suspected of collaborating against the state. Where humanitarian actors were allowed to engage with IDP populations, it was mainly to feed them. Thus the norms related to humanitarian access were embraced only when they aligned with government goals.

Darfur

Before the government-sanctioned expulsion of 16 humanitarian organisations in March 2009, the humanitarian operation in Darfur/Sudan earned the distinction of being the largest ongoing relief effort in the world, with more than 16 000 staff.⁵⁵ The expelled organisations managed a wide range of humanitarian protection and assistance programmes, including food distribution and security; child protection; emergency medical care; water and sanitation; and gender-based violence. Khartoum's decision left some 1.5 million without assistance and protection, compromising roughly half the entire aid delivery operation. It also precipitated the near collapse of humanitarian protection activities, which constituted the central programming of 10 of the evicted organisations.⁵⁶ When examining the factors leading to the 4 March decision, it is possible to differentiate this from Khartoum's earlier access denial strategies, suggesting that in this instance it was used strategically to secure specific policy goals.

Khartoum's perceptions of the humanitarian effort in Darfur have been characterised as an 'embarrassment of major proportions to a country in the throes of painfully public paroxysms of national self-definition'.⁵⁷ The norms associated with humanitarian access and civilian protection have never aligned with national ideologies in Sudan, and have never become embedded within national cognitive or political structures.⁵⁸ In fact, Khartoum has historically used humanitarian assistance as a bargaining chip to advance other ethno-political goals, and has long held the view that norms related to humanitarian access and civilian protection are obstacles to those goals. One former US Special Envoy to Sudan recalled a conversation with an 'old Sudan hand', who remarked, 'you

ask me how Khartoum can do these horrible things to their own people. These are not “their people”.⁵⁹

However, the strategic motivations leading to the expulsions appear to have been motivated by a different socio-political context than were other episodes of access denial that have characterised this case. First, the decision was immediate—publicised on the day the International Criminal Court (icc) issued its arrest warrant for Sudan’s president, Omar al-Bashir. The Sudanese People’s Liberation Movement, then a partner in a government of national unity, was not consulted on the matter.⁶⁰ It strongly and publicly opposed the decision, suggesting the order was made by senior leaders closely allied with al-Bashir. This would point to the decision being reactive and retaliatory in nature—prompted by external interests divergent from internationally accepted humanitarian norms.

Second, the decision had a pronounced impact in international policy circles and created a soapbox effect for Khartoum authorities. The UN issued a plea to Sudan to reconsider its decision, a position echoed initially by the USA and the European Union. The Security Council formally engaged the issue on 20 March.⁶¹ At that session the Sudanese permanent representative stood resolutely by his government’s ‘irrevocable’ decision. He appealed to Council members to return to a comprehensive political approach to resolving the crisis in Darfur/Sudan, noting that ‘all other aspects—humanitarian, security and even justice—are merely being exploited by some as pretexts for the current action of the icc’.⁶² Three days later Sudan re-engaged member states in a contentious debate on this matter at a General Assembly session.⁶³

In the following weeks and months the international media shone a spotlight on al-Bashir and his closest advisers. Indeed, Sudan maintained a high international profile and garnered significant diplomatic attention in the decision’s wake. Notably the USA relaxed its initial position on the expulsions and undertook an official review of Sudan policy.⁶⁴ It subsequently adopted new levels of openness towards Khartoum and supported easing sanctions. A new US strategy for engagement with Sudan was unveiled in late 2009, emphasising diplomacy, enhanced civilian protection and improving humanitarian conditions.⁶⁵ Khartoum was able to use expulsion successfully to advance its international-level interests, thereby rendering humanitarian access a point of leverage in that process—a proxy for other goals.

Third, the decision had little effect on Khartoum’s longstanding access denial practices across the region. For example, bureaucratic constraints on humanitarian space and access in Darfur/Sudan have been a constant feature of the humanitarian landscape since 2003 and remain ubiquitous. Indeed, humanitarian access and civilian protection have played out as part of a ‘cat and mouse game’ between humanitarian actors and government officials.⁶⁶ Currently international staff visas take six months or more to process, and travel permits are either rarely given or their processing is held up by continual delays. Government approval has also been required for all national staff recruitment and international agency appointments.

While the expulsion decision itself constitutes a bureaucratic act (but not an example of burdensome bureaucracy *per se*), since the issuance of the icc arrest

warrant for al-Bashir, bureaucratic constraints have neither been made more draconian nor have they been relaxed. This has remained the case, despite national rhetoric about fast-tracking humanitarian assistance. A small number of mandated protection agencies continue their activities in Darfur/Sudan but their working humanitarian space has been constrained mainly in ways that typified the pre-arrest warrant period.⁶⁷ For example, UN access levels to affected populations in Darfur have stayed relatively constant, while rural areas have been virtually inaccessible to humanitarian actors since 2003.⁶⁸

Fourth, the expulsions were selective and targeted, suggesting that they had less to do with securing domestic military goals against a security challenge and more to do with using discrete action against institutions perceived as closely related to a set of norms still highly contested at the national level. For example, remaining aid agencies initially found it difficult to fill gaps in aid provision, but overall the humanitarian operation in Darfur/Sudan continued apace. The most significant impact of the expulsions, however, has been on civilian protection activities. Health services and programmes treating victims of gender-based violence suffered greatly and gaps in these areas have been extremely difficult to overcome.⁶⁹

The expulsions represented a new dimension in the government's policy on humanitarian access, which suggests that it was at least in part a proxy for other goals. The public justification for the expulsions provides evidence that the access denial was retaliatory. Indeed, Khartoum emphasised repeatedly that the targeted organisations were ousted because they were complicit in helping build the ICC's case against President al-Bashir. In its renewal of the expulsion order in October 2009, the government reiterated this claim.

It is also worth noting that no foreign humanitarian workers had been abducted before the ICC arrest warrant for al-Bashir. Since March 2009, however, several such kidnappings have taken place in Darfur/Sudan and one occurred in eastern Chad near the border with Sudan.⁷⁰ One way to explain this shift is to examine instances of anti-foreigner bias embedded in the official rationale for the expulsion decision and the inflammatory rhetoric against foreigners found in statements made by political elites. Such biases may have facilitated a more permissive environment for perpetrators of violence, wherein the personal security of international aid workers was deemed no longer 'off-limits'. Another possible explanation is that rebels may not see INGOs on the ground as being operationally distinct and independent of an organisation like the ICC.⁷¹

Examining perceptions of norms associated with humanitarian access and civilian protection in this case prompts important questions related to the international humanitarian community's ability to deliver civilian protection. As primary providers of such protection, INGOs are at a distinct disadvantage when the host government intends to leverage them as proxies for other policy goals. It leaves norms, agreed to at the intergovernmental level, in tatters at the national level. INGOs may be on solid legal and normative ground to insist on full access, but the reality is that these organisations rely on states to backstop for them far more than they care to admit. This case also underscores the short supply of international political will to defend what are ostensibly universally accepted norms. Very few states pressed publicly for restoration of humanitarian

access for the expelled organisations, while many instead renewed their efforts to engage the Sudanese government politically and diplomatically.

Towards a typology of humanitarian access denial?

If we are to deepen our understanding of humanitarian access denial beyond the rather stale assumption that it is simply one of many prerogatives available to states, we should consider how a descriptive typology might assist in this endeavour. The three primary access denial mechanisms identified by OCHA have manifested themselves in different ways across the three cases explored in this article. Taking this as a starting point for developing such a typology (see Table 1), we argue that the differing combinations of access denial mechanisms in each case reflect variations in the prevailing perceptions held by state actors of humanitarian access and protection norms.

Latent access denial

In settings where authorities view humanitarian assistance and civilian protection norms as injurious to the national image, and where such activities legitimate norms or principles that do not align with prevailing national cognitive or political structures, latent denial of humanitarian access may be likely to occur. Latent humanitarian access denial allows national authorities to project a robust (or repair an otherwise tarnished) national image. It can also help prevent the proliferation of norms through humanitarian action that the state does not accept or endorse, particularly those related to human rights (eg equality, children's and women's rights). In such instances national authorities can utilise various forms of bureaucratic constraints to oppose these norms. Latent humanitarian access denial functions like a tripwire. Humanitarian access is conditional; some protection activities may be permissible, but are always subject to revocation if certain normative thresholds that the state views as 'red lines' are transgressed.

Latent access denial affects humanitarian operations by creating an ill-defined and uncertain civilian protection environment. Protection activities may become inconsistent or *ad hoc*, which in turn may exacerbate vulnerability. In response, humanitarian actors can attempt to collaborate with governments to align their activities more closely with prevailing perceptions of civilian protection norms. In other cases, however, organisations that place a high value on the humanitarian principle of independence or the universal applicability of civilian protection norms may turn further away from the government. This could perpetuate a cycle of mistrust and/or suspicion, which may also threaten protection work and put individuals associated with such organisations at significant risk.

Deterrent access denial

Where national authorities perceive that humanitarian access and civilian protection directly threatens domestic military and/or security goals, the state may engage in deterrent access denial. Such actions allow the state to reduce the chances of being held accountable by humanitarian actors for the means through

TABLE 1. A proposed typology of humanitarian access denial

Goal	Access denial strategy			Proxy Issue linkage
	Latent National image	Deterrent Domestic security		
<i>Principal access denial mechanisms</i>				
• Bureaucratic impediments • Intensity of hostilities • Violence against humanitarian personnel and theft of assets	X	X		X
		X		X
Implications	Uncertainty in protection environment across agencies and sectors Ethiopia	Blanket obstruction of protection across agencies and sectors Sri Lanka	Significant but uneven effect on protection across agencies and sectors Darfur	
Ideal type				

which those goals are achieved. It also deters humanitarian actors on the ground from advancing protection activities by using credible threats and sanctions. Once policy goals are secured, the state may restore humanitarian access. In these instances national authorities implement burdensome bureaucratic measures and utilise the intensification of hostilities to prohibit access and impede civilian protection of vulnerable groups, particularly those perceived as not deserving of protection. This form of access denial represents a highly assertive form of the sovereign prerogative, constitutes a failure to uphold the state's responsibility to protect, and treats humanitarian access and civilian protection norms as threats to prevailing national ideology or in some cases as a form of Western interventionism.

The impact of deterrent access denial is direct and uniform. Access to vulnerable groups is tightly controlled by the state, and only those activities that help the state maintain its control and achieve its security or military goals are permitted. Civilian protection is anathema to this, and humanitarian protection efforts will be all but completely thwarted. Where humanitarian actors resist national authority directives regarding access and protection, they risk being shut down.

Proxy access denial

Where states perceive humanitarian access and civilian protection as a bargaining chip to advance other regional or international policy goals, they may engage in proxy access denial. In such cases access denial and impeding civilian protection form a strategic pretext to conceal the true purpose of a state's actions. Proxy access denial facilitates new political opportunities for the state to pursue and possibly achieve in another (related or unrelated) issue area. It reflects issue-linkage in practice and serves as the ostensible rather than direct object of a state's attempt to secure its interests. Proxy access denial would involve the intensification of hostilities and a general failure to ensure civilian protection under international human rights and humanitarian law. National authorities may also perpetrate, or fail to hold other actors accountable for, direct violence against humanitarian workers and their operations. Such actions reinforce the subjective perceptions of norms constituting humanitarian access and civilian protection, which are not deeply embedded in national cognitive or political structures.

The impact on humanitarian access and civilian protection is similar to deterrent access denial outcomes. Civilian protection becomes near impossible to implement and, where it is possible, will be tenuous and risky. The effects of proxy access denial, however, will not necessarily be uniform across agencies and sectors. Rather, they will be contingent upon which humanitarian actors are selected for sanction by the state.

Conclusion

International humanitarian norms, including those characterising humanitarian access and civilian protection, are deeply rooted in intergovernmental and regional cognitive and political structures. National-level trends reflecting

impediments to humanitarian access and civilian protection warrant greater attention from practitioners and scholars.

States implement humanitarian access denial by creating bureaucratic constraints, intensifying hostilities, and facilitating or engaging in direct violence against humanitarian workers and their operations. Humanitarian crises in Ethiopia, Sri Lanka and Darfur/Sudan illustrate variations in the use of these mechanisms. To address this trend, pragmatism is critical. Humanitarian actors should incorporate into their strategic and operational planning assessments of whether and to what degree the normative commitments states make at the intergovernmental level regarding access and civilian protection align with national or ground-level commitments. This is especially true in cases where the intersubjective meanings national authorities hold regarding these norms appear to conflict with national or foreign policy goals.

The subjective perceptions of the humanitarian environment in particular cases may, in fact, leave humanitarian actors with little choice but to seek innovative means of access and protection that create significant discomfort with their missions and principles. This could involve engaging in remote programming or cross-border interventions, but this would require investing greater resources in training national staff, which could pose other types of hazards. And, at the risk of invoking an overused refrain, humanitarian actors must become better coordinators and collaborators with their fellow humanitarian actors. No organisation alone can solve what is effectively a collective action dilemma concerning access and protection.⁷²

States that regulate humanitarian access in ways that put civilians at existential risk—the ‘give us the food, keep your protection activities’ attitude—are acting in an era when the international humanitarian community is far more knowledgeable and better practised than ever at incorporating protection and avoiding dysfunctional humanitarian politics. Yet states continue to act with near impunity concerning humanitarian access and civilian protection norms. In 2009 Secretary-General Ban Ki-moon stipulated that ‘constraints on access should have consequences for those who impose them, not merely for those who suffer them’.⁷³ Humanitarian actors must play a more active role in educating donor and host governments and advocating support for stronger positive incentives that build state capacity to incorporate humanitarian access and civilian protection norms into national-level cognitive and political structures. In cases where this fails, the Security Council must muster the political will necessary to promote more systematic compliance with humanitarian access and civilian protection norms, including through targeted measures, investigatory mechanisms and accountability under international criminal law.

Finally, humanitarian actors should give closer attention to perceptions as the filter through which humanitarian reality is experienced. In the case studies examined here humanitarian actors have become marginalised pawns in larger games of politics. National perceptions of humanitarian access and civilian protection norms will for the foreseeable future trump international endorsements of or compliance with international human rights, and with humanitarian and refugee law. Where these norms do not enjoy widespread acceptance among

political elites, or where they contest other prevailing norms, the humanitarian environment will be marked by significant access and protection challenges.

Notes

- 1 See, for example, KM Bridges, 'Between aid and politics: diagnosing the challenge of humanitarian advocacy in politically complex environments—the case of Darfur, Sudan', *Third World Quarterly*, 31(8), 2010, pp 1251–1269; S Harriss, 'Humanitarianism in Sri Lanka: lessons learned?', *Feinstein Briefing Paper*, Medford, MA: Tufts University, 2010; and 'Syria crisis: the humanitarian response,' ODI Roundtable, London, 15 June 2012.
- 2 See *Report of the Secretary-General on the Protection of Civilians in Armed Conflict*, S/2009/277, New York: United Nations, 29 May 2009, paras 5, 26, 58–60 (hereinafter S/2009/277). The other core challenges are enhancing compliance with international law by parties to conflict; enhancing compliance by non-state armed groups with international law; improving protection through more effective and better resourced UN peacekeeping and other missions; and improving accountability for violations.
- 3 S/2009/277, Annex, paras 7–49.
- 4 Norms comprise shared understandings of appropriate behaviour reflecting legitimate social purpose for actors with a given identity. M Finnemore & K Sikkink, 'International norm dynamics and political change', *International Organization*, 52(4), 1998, pp 887–917.
- 5 While we recognise that a range of actors affects the dynamics of humanitarian crises, we focus on the role of the state and its behaviour in restricting or denying humanitarian access.
- 6 Contributions from individuals in the field and their headquarters institutions are not directly attributed.
- 7 Geneva Conventions of 1949, Common Article III; and Additional Protocol II of 1977, para 18(2), at <http://www.icrc.org/eng/war-and-law/treaties-customary-law/geneva-conventions/index.jsp>, accessed 19 July 2011.
- 8 See ICRC, *Third Workshop on Protection: Background Paper*, Geneva: ICRC, 1999; and OCHA, *OCHA Glossary of Humanitarian Terms in Relation to the Protection of Civilians in Armed Conflict*, New York: United Nations, 2004, p 26.
- 9 See S/2009/277.
- 10 For example, A/RES/46/182; A/RES/62/94; and UN General Assembly, *Report of the Special Committee on Peacekeeping*, A/64/19, 22 February–19 March 2010, paras 123–131, 143–151.
- 11 *Provisional Verbatim Record of the 5703rd Meeting of the Security Council*, S/PV.5703, 22 June 2007, pp 2–3.
- 12 Security Council Resolutions 1265, 17 September 1999; 1296, 19 April 2000; 1674, 28 April 2006; 1888, 30 September 2009; and 1960, 16 December 2010.
- 13 S/RES/1289, 7 February 2000, operative para 10(e); and S/2009/277, paras 12–13.
- 14 The term 'international humanitarian community' includes actors with an operational or advocacy focus in the field of humanitarian action and assistance. It does not include OCHA, which is not primarily an operational actor. It does include UN bodies with operational humanitarian mandates (eg UNHCR, UNICEF), as well as human rights groups, and international/national nongovernmental organisations (INGOs/NNGOs).
- 15 The latter can also be compounded by the former (eg the 2010 Haiti earthquake).
- 16 By themselves, such actions do not *automatically* generate protection crises or *necessarily* constitute breaches of international legal norms and obligations. See S/2009/277, Annex, para 3. While humanitarian access must not be denied for 'arbitrary' reasons, a state may enforce domestic laws regarding access and delimit it strictly for security requirements. See J-M Henckaerts, 'Study on customary international humanitarian law: a contribution to the understanding and respect for the rule of law in armed conflict', *International Review of the Red Cross*, 87(857), 2005, p 190.
- 17 J Mearsheimer, 'Reckless states and realism', *International Relations*, 23(3), 2009, pp 241–256; and R Jervis, *Perception and Misperception in International Politics*, Princeton, NJ: Princeton University Press, 1976.
- 18 I Kant, *The Critique of Pure Reason*, trans JMD Meiklejohn, Pennsylvania State University Electronic Classics Series, 1781/2010, at <http://www2.hn.psu.edu/faculty/jmanis/kant/Critique-Pure-Reason.pdf>, accessed 6 June 2011. On reflectivism, see RO Keohane, 'International institutions: two approaches', *International Studies Quarterly*, 32(8), 1988, pp 379–396.
- 19 JW Willis, *Foundations of Qualitative Research: Interpretive and Critical Approaches*, Thousand Oaks, CA: Sage, 2007, p 50.
- 20 M Barnett, 'Bureaucratizing the duty to aid: the United Nations and Rwandan genocide', in A Lang (ed), *Just Intervention*, Washington, DC: Georgetown University Press, 2003, pp 175–176.
- 21 See C Geertz, *The Interpretation of Culture*, New York: Basic Books, 1973, ch 1; and J Goldstein, *Ideas, Interests, and American Trade Policy*, Ithaca, NY: Cornell University Press, 1993, p 12.

- 22 KW Thompson, *Morality and Foreign Policy*, Baton Rouge, LA: Louisiana State University Press, 1980, pp 21–28.
- 23 AS Yee, ‘The causal effects of ideas on policies’, *International Organization*, 50(1), 1996, pp 94–98.
- 24 See Article 4 of the 2001 African Union Constitutive Act and the 2009 Kampala Declaration on Refugees, Returnees, and Internally Displaced Persons in Africa.
- 25 See Z Marriage, ‘Defining morality: DFID and the Great Lakes’, *Third World Quarterly*, 27(3), 2006, pp 477–490; B Çali, ‘On interpretivism and international law’, *European Journal of International Law*, 20(3), 2009, pp 805–822; and WL Neuman, *Social Research Methods*, Boston, MA: Allyn and Bacon, 1997.
- 26 S Lautze, A Raven-Roberts & T Erkinch, *Humanitarian Governance in the New Millennium: An Ethiopian Case Study*, London: HPG/ODI, 2009, p 7.
- 27 *Ibid*, pp 7–8, 10, 20.
- 28 MK Gugerty, ‘Patterns and structures of NGO self-regulation in Africa’, *International Journal of Civil Society Law*, VII(1), 2009, p 13.
- 29 Lautze *et al*, *Humanitarian Governance in the New Millennium*.
- 30 *Ibid*, p 21. This reorganisation was the sixth in 30 years since the creation of its predecessors, including the Relief and Rehabilitation Commission (RRC). Evidence suggests that other parts of the government viewed the RRC’s work as being too ‘pro-Western’.
- 31 IDMC/NRC, *Ethiopia: Human Rights Violations and Conflicts Continue to Cause Displacement*, Geneva: IDMC, 3 September 2009.
- 32 Co-author communication with senior INGO staff, Nairobi, November 2009.
- 33 Ethiopia UN Country Team, ‘Impact analysis of the Ethiopian Proclamation on Charities and Societies on United Nations’ programs in Ethiopia’, internal document.
- 34 Human Rights Watch, ‘Ethiopia: government prepares assault on civil society’, at <http://www.hrw.org/en/news/2008/07/01/ethiopia-government-prepares-assault-civil-society>, accessed 13 March 2010.
- 35 Co-author communication with INGO staff, Richmond, VA, January 2009.
- 36 We acknowledge that the LTTE also violated norms of humanitarian access and civilian protection. See UN Executive Office of the Secretary-General (UN EOSG), *Report of the Secretary-General’s Panel of Experts on Accountability in Sri Lanka*, New York: United Nations, pp 65–66.
- 37 IDMC/NRC, *Sri Lanka: Continuing Humanitarian Concerns and Obstacles to Durable Solutions for Recent and Longer-term IDPs* Geneva: IDMC, 10 November 2009.
- 38 The UN objected. See UN EOSG, *Report of the Secretary-General’s Panel*, p 21, including note 30.
- 39 Colombo’s justification may not have been arbitrary but, because evidence pointed to national forces being responsible for indiscriminate shelling and aerial bombardment of the Vanni, it was disingenuous. Areas where civilians were trapped were officially termed ‘No-Fire Zones’ and authorities publicly adopted a ‘zero civilian casualty’ policy during the final months of the war. If this was indeed the case, national authorities would have had strong motivations to uphold rather than disregard norms associated with humanitarian access and civilian protection.
- 40 UN EOSG, *Report of the Secretary-General’s Panel*, p 22, note 34.
- 41 Co-author communication with Tamil INGO relief worker, New York, October 2009.
- 42 M Rajapaksa, ‘Independence Day Message, “Be united as a single nation”’, 4 February 2009, at http://www.president.gov.lk/Writings_New.php?Id=42, accessed 15 September 2011.
- 43 UN EOSG, *Report of the Secretary-General’s Panel*, pp 41–48.
- 44 Co-author communication with INGO staff, Sri Lanka, June 2009.
- 45 The Ministry of Defence and camp managers (often retired military officers) were principal arbiters of access. Most camps were guarded by the military, and one commander insisted on meeting INGO staff every evening at 5pm to issue the next day’s orders. Co-author communication with INGO staff, Sri Lanka, May 2009.
- 46 Amnesty International, *Unlock the Camps in Sri Lanka: Safety and Dignity for the Displaced Now*, London: Amnesty International, 2009, pp 12–13.
- 47 Co-author fieldwork, Sri Lanka, May 2009.
- 48 See Amnesty International, *Unlock the Camps in Sri Lanka*, pp 13–14; and IDMC/NRC, *Sri Lanka*.
- 49 IDMC/NRC, *Sri Lanka*, p 6.
- 50 Co-author fieldwork, Sri Lanka, May 2009.
- 51 International Crisis Group (ICG), *Sri Lanka: A Bitter Peace*, Asia Briefing No 99, Colombo/Brussels: ICG, 2010, p 11.
- 52 Amnesty International, *Unlock the Camps in Sri Lanka*, p 13.
- 53 ICG, *Sri Lanka*, p 16.
- 54 *Ibid*, pp 3–4, 7.
- 55 For a list of expelled organisations, see <http://www.reliefweb.int/rw/rwb.nsf/db900SID/CJAL-7PTQSF?OpenDocument>; and ALNAP, *Where to Now? Agency Expulsions in Sudan: Consequences and Next Steps*, London: HPG/ALNAP, 2009, p 3.
- 56 A Heavens, ‘Expulsions hit Darfur rape victims: aid groups’, Reuters, 11 November 2009.

- 57 L Minear, 'Lessons learned: the Darfur experience', in *Review of Humanitarian Action 2004*, London: ALNAP, 2004, p 102.
- 58 See M Mamdani, *Saviors and Survivors: Darfur, Politics, and the War on Terror*, New York: Pantheon, 2009; and A de Waal & J Flint, *Darfur: A New History of a Long War*, New York: Zed/Palgrave Macmillan, 2006.
- 59 RW Williamson, *Sudan and the Responsibility to Protect*, Stanley Foundation Policy Analysis Brief, Muscatine, IA: Stanley Foundation, October 2009, p 5.
- 60 Co-author communication with diplomatic representative, New York, November 2009.
- 61 Sudan reiterated its position that the international community re-engage the country through holistic rather than *ad hoc* efforts, and refrain from using the Security Council to chastise a sovereign member state. See UN Security Council, *Provisional Verbatim Record of the 6096th meeting*, S/PV.6096, 20 March 2009.
- 62 *Ibid*, p 4.
- 63 Co-author direct observation notes, United Nations, New York, March 2009.
- 64 C Schmidt, 'US NGOs concerned by Obama's Darfur envoy, policy', 3 October 2009, at <http://www.reliefweb.int/rw/rwb.nsf/db900SID/SNAA-7WH3ZP?OpenDocument>, accessed 5 October 2009.
- 65 US Department of State, *Sudan: A Critical Moment, and Comprehensive Approach*, Office of the Spokesperson, at <http://www.state.gov/r/pa/prs/ps/2009/oct/130672.htm>, accessed 28 January 2009.
- 66 Minear, 'Lessons learned: the Darfur experience', p 81.
- 67 S Pantuliano & S O'Callaghan, *The 'Protection Crisis': A Review of Field-based Strategies for Humanitarian Protection in Darfur*, London: HPG/ODI, 2006.
- 68 M Buchanan-Smith & S Jaspars, 'Conflict, camps and coercion: the ongoing livelihoods crisis in Darfur', *Disasters*, 31(S1), 2007, pp S57–S76.
- 69 ALNAP, *Where to Now?*, p 4.
- 70 'Kidnappings add to Darfur aid agency problems', Agence France Presse, 17 August 2009.
- 71 W Wakabi, 'Aid expulsions leave huge gap in Darfur's health service', *Lancet*, 373, 2009, p 1069.
- 72 See B Ramalingam & M Barnett, *The Humanitarian's Dilemma: Collective Action or Inaction in International Relief*, London: ODI, 2010; and A Cooley & J Ron, 'The NGO scramble: organizational insecurity and the political economy of transnational action', *International Security*, 27(1), 2002, pp 5–39.
- 73 S/2009/277, para 59.

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